NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH (COURT-II), CHANDIGARH

CA (CAA) No. 28/CHD/HRY/2025

(An Application under sections 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Act read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF AMALGAMATION OF:

OKAYA POWER PRIVATE LIMITED
Through its Authorized Representative
Mr. Arush Gupta
having its registered office at
Plot No. 2, Sector-43, Golf Course Road,
Galleria DLF-IV, Gurgaon, Haryana – 122009
CIN: U74899HR1987PTC125247
PAN: AADCA7106P
……. Demerged Company/ Transferee Company/Applicant Company 1

OPG MOBILITY AND POWER PRIVATE LIMITED
Through its Authorized Representative
Mr. Naresh Kumar Singhal
having its registered office at
H. NO. 34, Amaltas Marg, DLF Phase-1,
Gurugram, Haryana-122002
CIN: U31909HR2020PTC1320
PAN: AADCO1568R
……. Resulting Company/Applicant Company 2

SUNOXX INTERNATIONAL PRIVATE LIMITED
Through its Authorized Representative
Mr. Arush Gupta
having its registered office at
Plot No. 2, Sector-43, Galleria DLF-IV,
Gurgaon, Haryana-122009
CIN: U31100HR2022PTC125246
PAN: ABICS3497B
…. Transferor Company 1/ Applicant Company 3

OKAYA FUJIKAWA POWER PRIVATE LIMITED
Through its Authorized Representative
Mr. Arush Gupta
Having its registered office at
Plot No. 2, Sector- 43, Golf Course Road,
Galleria DLF-IV, Gurgaon, Haryana -122009
CIN: U31109HR2022PTC125248
PAN: AADCO7603H
…. Transferor Company 2/ Applicant Company 4

Order delivered on: 29.08.2025

CORAM: SHRI KHETRABASI BISWAL, MEMBER (JUDICIAL)
SHRI KAUSHALENDRA KUMAR SINGH, MEMBER (TECHNICAL)

Appearance:

For the Applicant Companies : Mr. S. Shiva and Ms. Ria Agrawal, Advocates

ORDER

1. This is a joint First Motion Application (hereinafter referred to as "Application") filed by the Companies namely; **Okaya Power Private Limited** (hereinafter referred to as "Demerged Company"/ "Transferee Company"/ "Applicant Company No. 1"), **OPG Mobility and Power Private Limited** (hereinafter referred to as "Resulting Company"/ "Applicant Company No. 2"), **Sunoxx International Private Limited** (hereinafter referred to as "Transferor Company No. 1/ Applicant Company No. 3") and **Okaya Fujikawa Power Private Limited** ("Transferor Company No. 2" / "Applicant Company No. 4") under sections 230 to 232 of the **Companies Act, 2013** (hereinafter referred to as the "Act") and other applicable provisions of the Act read with the **Companies (Compromises, Arrangements and Amalgamations) Rules, 2016** (hereinafter referred to as the "Rules") through their Authorized Representative namely, Mr. Arush Gupta, for Applicant Company No. 1, 3 and 4 and Mr. Naresh Kumar Singhal for Applicant Company No. 2, inter-alia, seeking for dispensing with the requirement of convening the meetings of Equity Shareholders, Secured Creditors and Unsecured creditors of the Applicant Companies for considering and approving with or without modification, a Composite Scheme of Arrangement for Demerger and

Amalgamation (hereinafter referred to as "Scheme"). The copy of the Scheme is annexed as **Annexure A-1** to the Application.

2. **Applicant Company No. 1 or Demerged Company or Transferee Company** was incorporated on 29th July, 1987 under the provisions of erstwhile, the Companies Act, 1956 with the name and style of *'Extel Systems Private Limited'*. Thereafter the Demerged Company changed its name to *'Arrow International Private Limited'* and a fresh certificate of incorporation was issued on 11th April, 2002. Subsequently, the name of the Demerged Company was changed to *'Okaya Power Private Limited'* on 13th March, 2008. On 28th March, 2008, the Demerged Company was converted to a public limited company and its name changed to '*Okaya Power Limited'*. Thereafter, OPPL was converted back to private limited company on 22nd July, 2014 with its name changed to '*Okaya Power Private Limited'*. Further, the Regional Director, Northern Region, vide its order dated 8th August, 2024 approved the shifting of the Registered Office of the Company from New Delhi to Haryana. Presently, the Registered office of the Company is situated at Plot No. 2, Sector 43, Golf Course Road, Galleria DLF-IV, Gurgaon, Haryana- 122009.

2.1. The Demerged Company or Transferee Company is the flagship Company of the group, which is currently engaged in the following businesses:

(a) marketing and selling of diverse range of power backup solutions suitable for various applications including UPS/ Invertors, Invertor Tubular Batteries, Solar Tubular Batteries, brand names, manufactured by other group companies i.e. by the

Transferor Companies named as **"Battery Business".** Additionally, they have extensive service network to provide timely and reliable after-sales services; and

(b) manufacturing of Lithium batteries EV Chargers, EV Components, Electric Three wheelers, Energy storage systems and establishment and operation of charging stations etc. called as "**Lithium and Charging Business".**

2.2. The authorized, issued, subscribed and fully paid up share capital of the Applicant Company No. 1 as on 1st April, 2025 is as under:

Particulars	**Amount (Rs)**
Authorized Share Capital 40,00,000 Equity Shares of Rs. 10 each	4,00,00,000
Total	**4,00,00,000**
Issued, Subscribed and Paid-up Share Capital 29,87,120 Equity Shares of Rs. 10 each	2,98,71,200
Total	**2,98,71,200**

3. The **Applicant Company No. 2/ Resulting Company** was incorporated on 7th May, 2020 under the provisions of Companies Act, 2013 with name and style of OPG Electric Private Limited. Thereafter, the company had changed its name to Okaya EV Private Limited and fresh certificate of incorporation issued on 13th May, 2021 and subsequently changed its name to OPG Future Mobility Private Limited on 29th November, 2024. The Regional Director, Northern Region, vide its order dated 2nd April, 2025 approved the shifting of the Registered Office of the Company from New Delhi to Haryana. Presently, the Registered Office of the Company is situated at H. No. 34,

Amaltas Marg, DLF Phase-1, Gurugram, Haryana- 122002. Subsequently, the Company changed its name to OPG Mobility and Power Private Limited and fresh Certificate of Incorporation issued on 18th April, 2025. The Resulting Company is engaged in the business of manufacturing, selling, servicing systems, EV Charging stations, Electric vehicle components, Three-wheelers, Solar Products and all types of Electrical and Electronic Goods and other related products including accessories, its components and parts thereof and Research & Development of aforesaid Products.

3.1. The Authorised, Issued, Subscribed and fully paid up share capital of the Applicant Company No. 2 as on 1st April, 2025 is as under:

Particulars	**Amount (Rs)**
Authorised share capital 50,00,000 equity shares of 10 each	5,00,00,000
Total	**5,00,00,000**
Issued, Subscribed and Paid-up Share Capital 48,15,000 Equity Shares of Rs. 10 each	4,81,50,000
Total	**4,81,50,000**

4. **Applicant Company No. 3 or Transferor Company 1** was initially formed as a Partnership Firm namely *Sunnox International* during the year 2009 and thereafter was converted into a company incorporated on 23rd April, 2022 under the provisions of Companies Act, 2013 with the name and style of *Sunnox International Private Limited.* The Regional Director, Northern Region, vide its order dated 9th September, 2024 approved the shifting of the Registered Office of the Company from New Delhi to Haryana. Presently, the Registered Office of the Company is situated at Plot No. 2, Sector 43, Galleria

DLF-IV, Gurgaon, Haryana-122009. The Transferor Company-I is engaged in the business of 'Manufacturing of Batteries' including UPS/Invertors, Invertor Tubular Batteries, Solar Tubular Batteries, SMF/ VRLA Batteries and E-Rickshaw Batteries.

4.1. The Authorized, Issued, Subscribed and fully paid up share capital of the Applicant Company No. 3 as on 1st April, 2025 is as under:

Particulars	**Amount (Rs)**
Authorized Share Capital 50,00,000 Equity Shares of Rs. 10 Each	5,00,00,000
Total	**5,00,00,000**
Issued, Subscribed and Paid-up Share Capital 50,00,000 Equity Shares of Rs. 10 Each	5,00,00,000
Total	**5,00,00,000**

5. The **Applicant Company No. 4/ Transferor Company No. 2** was initially formed as a Partnership Firm namely *Fujikawa Power* on 15th July, 2008 and thereafter was converted into a Company on 23rd April, 2022 under the provisions of Companies Act, 2013 with the name and style of *Okaya Fujikawa Power Private Limited.* The Regional Director, Northern Region vide its order dated 8th August, 2024 has approved the shifting of the Registered Office of the Company from New Delhi to Haryana. The Registered office of the Transferor Company No. 2 is situated at Plot No. 2, Sector-43, Galleria DLF-IV, Gurgaon, Haryana – 122009. Applicant Company No. 4 is engaged in the business of 'Manufacturing of batteries including UPS/ Invertors, Batteries and E-Rickshaw Batteries.

5.1. The Authorized, Issued, Subscribed and Paid-up Capital of the Applicant Company No. 4 / Transferor Company-2 as on the Appointed Date i.e. 01st April, 2025 is as follows:

Particulars	Amount (Rs.)
Authorized Share Capital 50,00,000 Equity Shares of Rs. 10 Each	5,00,00,000
Total	**5,00,00,000**
Issued, Subscribed and Paid-up Share Capital 50,00,000 Equity Shares of Rs. 10 Each	5,00,00,000
Total	**5,00,00,000**

6. The Copies of the Memorandum of Articles of Association along with the Certificate(s) of Incorporation and Master Data of the Applicant Company No. 1, Applicant Company No. 2, Applicant Company No. 3 and Applicant Company No. 4 have been annexed with the Application as Annexure A-3, Annexure A-10 and Annexure A-17, Annexure A-24 respectively.

7. The Copies of the Audited Financial Statements as on 31st March, 2024 along with the supplementary financial statements as on 31st December, 2024 of the Applicant Company No. 1, Applicant Company No. 2, Applicant Company No. 3 and Applicant Company No. 4 have been annexed with the Application as Annexure A-8, Annexure A-15, Annexure A-22 and Annexure A-29 respectively.

8. It is stated that the Board of Directors of the Applicant Companies in the respective meetings held on 5th May, 2025 considered and approved the proposed Composite Scheme of Arrangement subject to sanctioning of the same by this Tribunal. The copies of the Board Resolutions of the Applicant

Companies are attached as Annexures A-2, A-9, A-16 and A-23 respectively to the Application.

9. It is submitted that the Rationale of the Scheme of Amalgamation between the Applicant Companies, and their respective shareholders and creditors is, inter-alia, as follows:

> *"The Board of Directors of the Applicant Companies are of the view that the (a) Demerger of the Lithium and Charging Business of the Demerged Company into the Resulting Company; and (b) Amalgamation of Transferor Companies with the Transferee Company, pursuant to this Composite Scheme, inter alia, would lead to the benefits hereinafter discussed:*
>
> *(1)* ***Rationale for demerger of Lithium and Charging Business:***
>
> *The Demerged Company is engaged in the business of manufacture of Lithium batteries, EV Chargers, EV Components, Electric three wheelers, Energy storage systems etc., establishment and operation of EV charging stations, and also engaged in the marketing and selling of the batteries in its own brand name manufactured by the Transferor Companies. In order to keep the entire Battery Business at one place and strengthen the scalability of Lithium and Charging Business the managements of the Demerged Company and the Resulting Company have agreed and decided to hive off the Lithium and Charging Business (as defined hereinafter) of the Demerged Company into the Resulting Company. Followings are the rationale for such a decision:*
>
> *a. The nature of risk, competition, challenges, opportunities and business methods for Lithium and Charging Business is separate and distinct from the Battery Business being carried on by the Demerged Company. The Lithium / Charging Station Business and Battery Business of the Demerged Company are capable of attracting a different set of investors, strategic partners, lenders and other stakeholders. The manner in which the Lithium / Charging Station Business and Battery Business of the Demerged Company are required to be organized, managed and run are also different. In order to lend greater/ enhanced focus to the operation of the said businesses, it is proposed to reorganize and segregate the Lithium / Charging Station Business by way of demerger and transfer the same to the Resulting Company.*

b. Creation of a separate, distinct and focused entity housing the entire Lithium and Charging Business will lead to greater operational efficiencies, optimal utilization of the available resources and optimization of capital and operational expenditure for the Lithium and Charging.

c. Independent setup of each of the undertakings of the . Demerged Company and the Resulting Company will ensure required depth and focus on each of the companies and adoption of strategies necessary for the growth of the respective companies. The structure shall provide independence to the management in decisions regarding the use of their respective cash flows for dividends, capital expenditure or other reinvestment in their respective businesses;

d. Unlocking of value for shareholders of the Demerged Company by transfer of the Lithium and Charging . Business, which would enable optimal exploitation, monetization and development of both, Residual Undertaking (as defined hereinafter) and the Lithium and Charging Business by attracting focused investors, joint venture partners and strategic partners having the necessary ability, experience and interests in this sector and by allowing pursuit of inorganic and organic growth opportunities in such businesses; and

The demerger would enable the business and activities to be pursued and carried on with greater focus and attention through two separate companies each having its own separate administrative set up and dedicated management.

(2) ***Rationale for Amalgamation of Transferor Companies with the Transferee Company:***

The decision of amalgamation of the Transferor Companies with the Transferee Company has following rationale:

a. The Transferor Companies and the Transferee Company are promoted by common promoter family members. Entire Shareholding of Transferor Companies and the Transferee Company is controlled, owned and held by members of common promoter families. Further members of common promoter families are directors of Transferor Companies and Transferee Company. The amalgamation of the Transferor Companies with the Transferee Company shall facilitate consolidation of all the battery businesses . and undertakings whereby Transferee Company will have combined capabilities from manufacturing components to finished products and established sales and marketing network and it will emerge as an integrated player in the industry. The amalgamation of Transferor Companies and Transferee Company will also lead to unified control and effective management.

b. The Transferor Companies and Transferee Company are operating in the same industry; the merger will offer a considerable advantage by streamlining operations under a single entity. The Transferor Companies are engaged in Battery manufacturing and the Transferee Company is engaged in the marketing and selling of the same Batteries. Hence, the amalgamation of Transferor Companies with Transferee Company will create a single, cohesive entity providing end-to-end services, from production to market delivery, leading to enhanced operational efficiency. Additionally, it will consolidate identical business lines, resulting in substantial savings on administrative costs and other overheads, thereby strengthening the overall competitive position in the market.

c. Apart from above, the amalgamation shall result in the

- *Financial strength and flexibility for the Transferee Company, which would result in maximizing overall shareholder value, and will improve the competitive position of the combined entity.*
- *Achieve greater efficiencies in operations with optimum utilization of resources, better administration and reduced cost.*
- *Cost savings are expected to flow from more focused operational efforts, rationalization, standardization and simplification of business processes, productivity improvements, and the elimination of duplication, and optimum rationalization of administrative expenses and utilization of human resources.*
- *Improved organizational capability and leadership arising from pooling of financial, managerial and technical resources.*
- *A larger growing company will mean enhanced financial and growth prospects for the people and organization connected therewith and will be in the public interest. The amalgamation will be conducive for better and more efficient and economical control over the business and financial conduct of the Companies.*

Due to the aforesaid reasons, it is considered desirable and expedient to demerge, Lithium and Charging Business ("Demerged Undertaking") of Demerged Company and vesting of the same with the Resulting Company and subsequently, Amalgamate the Transferor Companies with Transferee Company in accordance with this Composite Scheme, pursuant to the provisions of Section 230 - 232 of the Companies Act, 2013 and the applicable rules made thereunder".

10. The Applicant Companies has submitted that the details of pending investigations or proceedings in respect of the Applicant Companies under any law for the time being in force, by way of Affidavit annexed as Annexure A-32 to the Application. The details of pending investigations/ proceedings are provided hereinafter:

10.1. That certain litigations and other matters are pending in respect of the Demerged Company I Transferee Company / Applicant Company 1 inter alia under the Income Tax Act, 1961 and Goods and Services Tax Act, 2017.

It is submitted by the Appellant Companies that upon the effectiveness of the Scheme, the Applicant Company 1 shall continue to exist as a going concern and all legal proceedings in respect of the 'Demerged Unde1iaking' of the Applicant Company 1 shall be carried out by the Resulting Company in accordance with the provisions of the Scheme.

10.2. That certain litigation(s) are pending in respect of the Resulting Company / Applicant Company 2.

It is submitted that the Demerged Company and the Resulting Company shall continue to exist as a going concern even after the proposed scheme becoming effective, and, proceedings, inquiry or investigation, if any, would not have any impact on the operations of the Demerged Company and the Resulting Company.

10.3. That in respect of the Transferor Companies, certain matters inter alia under the Income Tax Act, 1961 and/or Goods and Services Tax Act, 2017 are pending. It is submitted that any proceedings, inquiry

or investigation, if any, pending in respect of the Transferor Companies, shall stand transferred to the Transferee Company.

11. It is submitted that the directors of the Applicant Companies and their relatives have no material interests in the proposed Scheme except to the extent of shareholding, if any, in the respective Applicant Companies. It is further submitted that the Scheme does not envisage any Reduction of Share Capital or any Corporate Debt restructuring under Section 230(2)(b) and Section 230(2)(c) of the Act of either of the Applicant Companies and the same is attached as Annexure A-32 to the Application.

12. The Applicant Companies has further submitted that the Company has filed a certificate issued by their respective Statutory Auditors certifying that the Scheme is in compliance with the Accounting Standards under Section 133 of the Act and the same are annexed to the Application as Annexure 31.

13. It is stated that the Scheme also takes care of the interest of the staff/ workers and employees of the Applicant Companies by virtue of Clause 6 of Chapter 2 and Clause 6 of Chapter 3 of the Scheme.

14. It is further submitted by the Applicant Companies that there is no other Sectoral Regulator or Regulatory Authority which may have significant bearing on the operations of the Applicant Companies except those mentioned in the Application.

15. It is further submitted that apart the No Objection Certificate of Competition Commission of India is not required in the instant case as the

Applicant Companies do not meet the threshold criteria for a combination as provided under Section 5 of the Competition Act, 2002.

16. It is further submitted that the Applicant Companies has filed certificate dated 11th June, 2025 issued by their respective Statutory Auditors certifying that the Scheme is in compliance with the accounting standards under Section 133 of the Companies Act, 2013 and are annexed with the Application as Annexure A-6.

17. The Appointed Date of Mergers of the Transferor Company into Transferee Company is 1st April, 2025 as mentioned in Clause 1.3 of the Scheme.

18. Clause 4 of the Scheme sets out the procedure of continuity and institution of legal proceeding(s).

19. The Applicant Companies have furnished the details of Consents received by the Equity Shareholders, Secured Creditors and Unsecured Creditors as follows:

Name of the applicant company	**Equity shareholders**	**Secured Creditors**	**Unsecured Creditors**
Applicant 1	100% Consent Affidavit obtained from all 3 Equity Shareholders	100% Consent Affidavit obtained from all 3 Secured Creditors	90.84% Consent Affidavit received from 11 out of 408 Unsecured creditors
Applicant 2	100% Consent Affidavit obtained from all 5 Equity Shareholders	100% Consent Affidavit obtained from sole Secured Creditor	92.69% Consent Affidavit received from 09 out of 263 Unsecured creditors

Applicant 3	100% Consent Affidavit obtained from all 3 Equity Shareholders	100% Consent Affidavit obtained from sole Secured Creditor	94.82% Consent Affidavit received from 17 out of 110 Unsecured creditors
Applicant 4	100% Consent Affidavit obtained from all 3 Equity Shareholders	100% Consent Affidavit obtained from sole Secured Creditor	95.08% Consent Affidavit received from 17 out of 118 Unsecured creditors

20. In compliance of the Order of this Tribunal dated 12.06.2025, the Applicant Companies have furnished the bifurcated list of Unsecured Creditors along with additional consents, the details of which are as follows:

Name of the Applicant Company	**Promoter and Group Concern (Unsecured Creditors)**	**Others (Unsecured Creditors)**	**Total Unsecured Creditors**
Applicant 1	99.36% Consent Affidavit received from 10 Unsecured creditors	59.49% Consent Affidavit received from 99 Unsecured creditors	**94.61%** Consent Affidavit received from 109 out of 408 Unsecured creditors
Applicant 2	99.59% Consent Affidavit received from 09 Unsecured creditors	58.48% Consent Affidavit received from 68 Unsecured creditors	**96.74%** Consent Affidavit received from 77 out of 263 Unsecured creditors
Applicant 3	99.97% Consent Affidavit received from 07 Unsecured creditors	90.98% Consent Affidavit received from 33 Unsecured creditors	**98.34%** Consent Affidavit received from 40 out of 110 Unsecured creditors
Applicant 4	99.61% Consent Affidavit received from 08 Unsecured creditors	90.75% Consent Affidavit received from 25 Unsecured creditors	**97.92%** Consent Affidavit received from 33 out of 108 Unsecured creditors

21. We have heard the Learned Counsel for the Applicant Companies and have perused the material available on record carefully.

22. This Application was filed by the Applicant Companies praying for dispensing with the requirement of convening the meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Companies. Consent Affidavits from Equity Shareholders, Secured Creditors and Unsecured Creditors of all the Applicant Companies with regards to approval of the Scheme have been received. The Scheme has been approved by the respective Board of Directors of the Applicant Companies. The Applicant Companies have filed the certificate, issued by statutory auditors of the respective Applicant Companies certifying that the Scheme is in compliance with the Accounting Standards under Section 133 of the Act.

23. Having considered the facts and the objects of the Scheme as stated in the application narrated hereinabove and materials available on record, we are inclined to dispose of this Company Application bearing CA(CAA) No. 28/Chd/Hry/2025 with the following directions:

(a) The meeting of the Equity Shareholders of all the Applicant Companies is dispensed herewith,

(b) The meeting of the Secured Creditors of all the Applicant Companies is dispensed herewith,

(c) The meeting of the Unsecured Creditors of the Applicant Companies are dispensed herewith, keeping in view that:

(i) In relation to Applicant Company No. 1, more than 90% of the total Unsecured Creditors have given their consents by way of Affidavits whereby constituting 94.61% in value of the total unsecured creditors,

(ii) In relation to Applicant Company No. 2, more than 90% of the total Unsecured Creditors have given their consents by way of Affidavits whereby constituting 96.74% in value of the total unsecured creditors,

(iii) In relation to Applicant Company No. 3, more than 90% of the total Unsecured Creditors have given their consents by way of Affidavits whereby constituting 98.34% in value of the total unsecured creditors,

(iv) In relation to Applicant Company No. 4, more than 90% of the total Unsecured Creditors have given their consents by way of Affidavits whereby constituting 97.92% in value of the total unsecured creditors.

24. The Applicant Companies shall individually and in compliance of sub-section (5) of Section 230 of the Act and Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 send notices in Form No. CAA-3 along with copy of the Scheme to - **(a)** Central Government through Regional Director, Northern Region, Ministry of Corporate Affairs, New Delhi, (Email: rd.north@mca.gov.in); **(b)** the Registrar of Companies, Delhi and Haryana (Email: roc.delhi@mca.gov.in); **(c)** the Official Liquidator (attached to Punjab and Haryana High Court) (Email: ol.chandigarh@mca.gov.in); **(d)** Concerned Income Tax Department (through its Nodal Officer in the office of Principal Chief Commissioner of Income Tax, NWR, Ayakar Bhawan, Sector-17-E, Chandigarh (Email: chandigarh.pccit@incometax.gov.in); and jurisdictional assessment offices of the Applicant Companies) by mentioning the PAN of all the four Applicant Companies and to such other Sectoral Regulator(s) governing the business of the Applicant Companies, if any, stating that report on the same, if any, shall

be sent to this Tribunal within a period of 30 days after filing of Second Motion Petition.

25. With the aforesaid directions, Company Application CA (CAA) No. 28/Chd/Hry/2025 is allowed and disposed of accordingly.

Sd/-
Kaushalendra Kumar Singh
Member (Technical)

Sd/-
Khetrabasi Biswal
Member (Judicial)
Aakash